

Town of Westhampton Special Town Meeting

Record of Proceedings

December 8, 2025

TOWN MODERATOR: Meeting called to order at 7:02PM, and a quorum was declared.

ARTICLE 1: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for unpaid bills and/or over-expended accounts of previous fiscal years.

MOVED and SECONDED that the Town transfer from Free Cash the sum of SIX THOUSAND DOLLARS exactly, for payment of invoices received from Eric A Kinsherf CPA LLC for Municipal Accountant Services, as follows:

Invoice #4356 dated May 31, 2025, for \$3,000, and

Invoice #4392, dated June 30, 2025, for \$3,000.

9/10 VOTE REQUIRED

Motion passed unanimously.

MOVED and SECONDED that the Town transfer from Free Cash the sum of THIRTY DOLLARS exactly for payment of an invoice received from Eversource for electric service to the Westhampton Cemetery, account number 5484 503 5054, for the period from November 20 to December 20, 2023.

SIMPLE MAJORITY VOTE REQUIRED

Motion passed unanimously.

MOVED and SECONDED that the Town transfer from Free Cash the sum of TWENTY FIVE DOLLARS exactly for payment of invoice number 137147 received from the Massachusetts Municipal Association.

SIMPLE MAJORITY VOTE REQUIRED

Motion passed unanimously.

ARTICLE 2: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for expenses related to Group Health Insurance for the Fiscal Year 2026, or take any action relative thereto.

MOVED and SECONDED that the Town transfer from Free Cash the sum of ONE HUNDRED TWENTY SIX THOUSAND, NINE HUNDRED THREE DOLLARS EXACTLY, to be paid to the Hampshire County Group Insurance Trust for group health insurance coverage for the 2026 fiscal year.

An amendment was proposed to read ONE HUNDRED TWENTY SIX THOUSAND, NINE HUNDRED THIRTY DOLLARS. Motion carried unanimously to amend the motion.

SIMPLE MAJORITY VOTE REQUIRED

Motion passed unanimously.

ARTICLE 3: To see if the Town will vote to amend the Zoning Bylaw of the Town of Westhampton in order to remove references to a "Zoning Determination Policy" that was disallowed by the Attorney General in April 2024, or take any other action relative thereto.

MOVED and SECONDED that the Town vote to amend the Zoning Bylaw of the Town of Westhampton in order to **remove references to a "Zoning Determination Policy"** that was

disallowed by the Attorney General in April, 2024, by adding the text shown in bold and underline and striking the text shown in italics and strikethrough, all as set forth below.

BY AMENDING Section 3.0 of the Zoning Bylaw of the Town of Westhampton, in accordance with the draft language provided to Town Meeting members in the packet, as follows:

3.0 - Schedule of Use Regulations

Except as provided elsewhere in these bylaws, no building or structure shall be erected or altered, and no building, structure or land shall be used for any purpose, other than as provided for in this section. ~~If a use or condition is not specifically or generally listed herein, a landowner/interested party should contact the Building Inspector for a zoning determination. Questions of the Building Inspector/Commissioner that seek information or guidance do not require a determination form.~~ Mixed use such as residential and commercial, or residential and industrial, located on one parcel are prohibited; however, this prohibition shall not apply to home occupations, offices and studios (see Section 5.2).

And further

BY AMENDING the title of Section 3.01 in accordance with the draft language provided to Town Meeting members in the packet, as follows:

3.01 – ~~Zoning Determination Policy~~ **Schedule of Use Regulations - Notation**

And further

BY AMENDING Section 5.16 “Wireless Communication Facility (Tower)” Part 7 “Procedures for Special Permit” by striking Subsection a of that Section entirely, as follows, and renumbering the remaining subsections accordingly:

5.16.7. Procedures for Special Permit

~~a. All applications for modification of existing or construction of new wireless communications facilities shall be submitted in accordance with Westhampton “Zoning Determination Policy” under Section III.~~

TWO/THIRDS VOTE REQUIRED

Motion passed unanimously.

ARTICLE 4: To see if the Town will amend the Zoning Bylaw of the Town of Westhampton to correct language that refers to Non-Protected Use Accessory Dwelling Units (“ADUs”) as defined by the General Laws, Chapter 40A, Section 3 and the regulations adopted thereunder, in accordance with guidance received by the Town from the Attorney General, or take any other action relative thereto.

MOVED and SECONDED that the Town vote to amend the Zoning Bylaw of the Town of Westhampton, Section 5.17.3.i in accordance with the draft language provided to Town Meeting members in the packet, by adding the text shown in bold and underline, and striking the text shown in italics and strikethrough, as follows:

3. Special Permit.

- i. An ADU that **is not a Protected Use ADU as defined pursuant to G.L. c. 40A §3 and the regulations adopted thereunder** ~~does not otherwise meet all criteria specified in 5.17.1-B~~, may be conditionally permitted by the Planning Board, provided that it finds that adequate relief from any of the criteria in 5.17.1.2 may be granted without abrogation of the meaning and intent of the Zoning Bylaw, that

said relief will not reasonably detract from the neighborhood, and so declare in its record of proceedings.

TWO/THIRDS VOTE REQUIRED

Motion passed with 2/3 majority.

ARTICLE 5: To see if the Town will amend the Zoning Bylaw of the Town of Westhampton to restore parking requirements for Protected Use Accessory Dwelling Units (“ADUs”) in a manner that complies with state laws and regulations, or take any other action relative thereto.

MOVED and SECOND that the Town vote to amend the Zoning Bylaw of the Town of Westhampton by adding Section 5.17.2.v. as follows:

5.17.2.v. One additional off-road parking space shall be required. This requirement shall not apply to any Protected Use ADU that is located on a lot where any portion of the lot is located within a 0.5 mile radius of a Transit Station.

TWO/THIRDS VOTE REQUIRED

Motion passed unanimously.

ARTICLE 6: To see if the Town will vote to restrict the Selectboard from appointing a quorum of any elected or appointed board to any other board or committee by amending the General Bylaw of the Town of Westhampton by adding Section 4-5-6 relative to appointments by the Selectboard, or take any other action relative thereto.

MOVED and SECONDED that the Town vote to amend the General Bylaw of the Town of Westhampton by adding Section 4-5-6 as follows:

Section 4-5-6: Unless otherwise provided by law or bylaw addressing the authority of the Selectboard to make appointments, the Selectboard is prohibited from appointing members of any elected or appointed boards or committees to any other Town board or committee if such appointment would result in a quorum of any one board or committee serving on any other committee.

TWO/THIRDS VOTE REQUIRED

After discussion, it was MOVED and SECONDED to withdraw the motion. VOTED.

Motion carries with one decent.

MOVED and SECONDED that the special town meeting be dissolved at 7:50PM.

Certified a true attest,

Kayla Diggins, Town Clerk